

COUR PERMANENTE DE JUSTICE INTERNATIONALE

SÉRIE A/B

ARRÊTS, ORDONNANCES ET AVIS CONSULTATIFS

FASCICULE N° 56

APPELS CONTRE CERTAINS JUGEMENTS
DU TRIBUNAL ARBITRAL MIXTE
HUNGARO-TCHÉCOSLOVAQUE

ORDONNANCE DU 12 MAI 1933

XXVIII^{me} SESSION

1933

XXVIIIth SESSION

ORDER OF MAY 12th, 1933

PERMANENT COURT OF INTERNATIONAL JUSTICE

SERIES A./B.

JUDGMENTS, ORDERS AND ADVISORY OPINIONS

FASCICULE No. 56

APPEALS FROM CERTAIN JUDGMENTS
OF THE HUNGARO-CZECHOSLOVAK
MIXED ARBITRAL TRIBUNAL

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PERMANENT COURT OF INTERNATIONAL JUSTICE

ORDER MADE ON MAY 12th, 1933.

1933.
May 12th.
General List:
Nos. 51, 54, 56, 57.

TWENTY-EIGHTH (EXTRAORDINARY) SESSION.

May 12th, 1933.

APPEALS FROM CERTAIN JUDGMENTS
OF THE HUNGARO-CZECHOSLOVAK
MIXED ARBITRAL TRIBUNAL.

Present: MM. ADATCI, *President*; GUERRERO, *Vice-President*;
Baron ROLIN-JAEQUEMYS, Count ROSTWOROWSKI,
MM. FROMAGEOT, ANZILOTTI, URRUTIA, Sir CECIL HURST,
MM. SCHÜCKING, NEGULESCO, Jhr. VAN EYSINGA,
M. WANG, *Judges*.

The Permanent Court of International Justice,
composed as above,
after deliberation,

Makes the following Order:

Having regard to Article 48 of the Statute of the Court;
Having regard to Article 61 of the Rules of Court;

Having regard to the Application of July 7th, 1932, filed in the Registry on July 11th, from the Government of the Czechoslovak Republic "appealing from the judgments of December 21st, 1931, of the Hungaro-Czechoslovak Mixed Arbitral Tribunal concerning questions of jurisdiction in the case of Alexander Semsey and others *v.* the State of Czechoslovakia (No. 321) and in the case of Wilhelm Fodor *v.* the State of Czechoslovakia (No. 752)";

Having regard to the Application of July 20th, 1932, filed in the Registry on July 25th, from the Government of the Czechoslovak Republic "appealing from the judgment of April 13th, 1932, of the Hungaro-Czechoslovak Mixed Arbitral Tribunal upon merits in the case of the *Ungarische Hanf- und Flachsindustrie v. (1) the State of Czechoslovakia, and (2) the Flax Spinners' Association (No. 127)*";

Having regard to the Orders of July 18th and 28th, 1932, whereby the Court fixed the respective time-limits in these suits for the presentation of Cases and Counter-Cases;

Having regard to the documents filed on behalf of the Hungarian Government on October 24th, 1932, whereby that Government lodged preliminary objections in respect of each of the two Applications filed by the Czechoslovak Government;

Having regard to the Order of October 26th, 1932, whereby the Court joined the preliminary objections lodged in the two suits and fixed a time-limit within which the Czechoslovak Government might submit a written statement in regard to these objections;

Whereas, in these circumstances, these suits, in so far as concerns the objections above mentioned, became ready for hearing as from January 16th, 1933, and the oral proceedings in regard to them were fixed to begin on May 9th, 1933;

Whereas, by a letter dated Prague, April 8th, 1933, and filed in the Registry on April 11th, the Agent representing the Czechoslovak Government before the Court in these cases has informed the latter that his Government "withdraws the appeals" submitted by the above-mentioned Applications of July 7th and 20th, 1932, and has requested the Court "to take the necessary steps for the removal of these suits from its list";

Whereas, on being duly informed of the terms of the letter of the Czechoslovak Government's Agent of April 8th, 1933, the Agent for the Hungarian Government has declared, in a letter to the Registrar dated April 18th, 1933, that the Royal Hungarian Government "notes with satisfaction the notification of the withdrawal of the suits and also the fact that, accordingly, these proceedings, which had been instituted before the Court by the Government of the Czechoslovak Republic, are now happily terminated and no longer affect the relations between the Kingdom of Hungary and the Czechoslovak Republic";

Whereas the withdrawal of the suits by the Czechoslovak Government, having been duly acquiesced in by the Hungarian Government and notified to the Court, terminates the proceedings instituted;

FOR THESE REASONS,

The Court,

Noting the declaration made by the Agent for the Government of the Czechoslovak Republic on April 8th, 1933, to the effect that the Government of the Czechoslovak Republic withdraws "the appeals" submitted by its Applications of July 7th and 20th, 1932, and

Taking note of the declaration made on April 18th, 1933, by the Agent of the Royal Hungarian Government, to the effect that the Royal Hungarian Government acquiesces in this withdrawal,

Declares that the proceedings begun by the Applications of the Czechoslovak Government are terminated;

Decides that the said cases shall be removed from the Court's list.

Done in English and French, the French text being authoritative, at the Peace Palace, The Hague, this twelfth day of May, one thousand nine hundred and thirty-three, in three copies, one of which shall be placed in the archives of the Court and the others forwarded to the Government of the Czechoslovak Republic and to the Royal Hungarian Government respectively.

(Signed) M. ADATCI,
President of the Court.

(Signed) Å. HAMMARSKJÖLD,
Registrar of the Court.